



CHAPTER 28.

An Act to provide, during twelve months, for the discipline and regulation of the Army and the Air Force.
[29th April 1948.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of eight hundred and fifty thousand :

And whereas it is adjudged necessary that a body of air forces should be continued for the purposes aforesaid, and that the whole number of such forces should consist of three hundred and twenty-five thousand :

And whereas it is also judged necessary for the safety of the United Kingdom and the defence of the possessions of this realm that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or be sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm ; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny, or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and forty-eight on the following days :—

- (a) In Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, on the thirtieth day of April ; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Short title. 1. This Act may be cited as the Army and Air Force (Annual) Act, 1948.

Army Act and
Air Force Act
to be in force
for specified
times.

2.—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament, that is to say :—

- (a) Within Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, from the thirtieth day of April, nineteen hundred and forty-eight, to the thirtieth day of April, nineteen hundred and forty-nine, both inclusive ; and
- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July, nineteen hundred and forty-eight, to the thirty-first day of July, nineteen hundred and forty-nine, both inclusive.

(2) Notwithstanding anything in subsection (1) of section 22 & 23 Geo. 5. fifteen of the Army and Air Force (Annual) Act, 1932, the amendments of the Army Act and the Air Force Act made by c. 22.

this Act shall come into operation in all places as from the thirtieth day of April, nineteen hundred and forty-eight, or in the case of the amendments of those Acts made by section four of this Act, on the date specified in that section.

(3) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

(4) A person subject to military law or to the Air Force Act shall not be exempted from the provisions of the Army Act or the Air Force Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the numbers hereinbefore mentioned.

AMENDMENTS OF THE ARMY AND AIR FORCE ACTS.

PART I.

AMENDMENTS OF THE ARMY ACT APPLICABLE ALSO (SUBJECT TO MODIFICATIONS) TO THE AIR FORCE ACT.

3.—(1) In section forty-five of the Army Act (which provides for the custody of persons charged with offences) after paragraph (2) there shall be inserted the following paragraph:— Powers of arrest of provost marshals, etc.

“(2A) A provost marshal or assistant provost marshal, or any officer or non-commissioned officer legally exercising authority under a provost marshal or on his behalf, may order into military custody any officer or soldier, so however that no officer shall be arrested or detained otherwise than on the order of another officer.”

(2) In paragraph (3) of the said section forty-five for the word “An” where that word first occurs there shall be substituted the words “Without prejudice to the last foregoing paragraph, any”; and for the words “and any such order” in the said paragraph (3) there shall be substituted “(3A) Any order under either of the two last foregoing paragraphs”.

4. As from the fifth day of July, nineteen hundred and forty-eight, the following section shall be substituted for section ninety-one of the Army Act (which provides for the reception of discharged soldiers of unsound mind in mental hospitals or other institutions), that is to say:— Discharge of soldiers of unsound mind.

“91.—(1) Where it appears to the Army Council or any officer deputed by them that a soldier is—

(a) a dangerous person of unsound mind; or

PART I.
—cont.

(b) a person of unsound mind requiring treatment in a mental hospital and having no relative who claims to take charge of him ; or

(c) a person of unsound mind having no relative willing to take charge of him,

the Army Council or officer deputed by them may if they or he think proper cause the soldier on his discharge to be received in a mental hospital in accordance with the following provisions of this section.

(2) Where the soldier has a home in Great Britain, the Regional Hospital Board for the area in which his home is situated shall, on request made by the Army Council or officer deputed by them, forthwith designate a mental hospital in their area, and the Army Council or officer deputed by them shall by order direct that the soldier shall be received into that hospital.

(3) Where the soldier has a home in Northern Ireland—

(a) the secretary or other officer of the Northern Ireland Hospitals Authority shall, on request made by the Army Council or officer deputed by them, forthwith designate a mental hospital in Northern Ireland, and the Army Council or officer deputed by them shall by order direct that the soldier shall be received into that hospital ; and

(b) the Army Council or officer deputed by them shall, if the case so requires, inform the welfare authority for the purposes of the Public Health and Local Government (Administrative Provisions) Act (Northern Ireland), 1946, and the said welfare authority shall take such steps as may in their opinion be necessary to secure the welfare of the wife and children of the soldier.

(4) An order made under subsection (2) of this section shall have the like effect, and the like proceedings shall be taken thereon, as if it were an order under section sixteen of the Lunacy Act, 1890, or in Scotland an order of the sheriff made under section fourteen, or in the case of a soldier being a dangerous person of unsound mind, section fifteen, of the Lunacy (Scotland) Act, 1862 ; and an order under paragraph (a) of subsection (3) of this section shall have the like effect, and the like proceedings shall be taken thereon, as if it were a reception order made under section nine of the Mental Treatment Act (Northern Ireland), 1932, or under any corresponding enactment of the Parliament of Northern Ireland for the time being in force.

53 & 54 Vict.
c. 5.

25 & 26 Vict.
c. 54.

(5) Any question arising under this section whether, and if so where, a person has a home in the United Kingdom shall be decided by the Army Council or an officer deputed by them, and for the purposes of this section a person with no home in the United Kingdom may be treated as if he had a home in such area as may be determined by the Army Council or an officer deputed by them."

PART I.
—cont.

5. After subsection (2) of section one hundred and forty-four A of the Army Act (which provides for the sending to the Army Council or an officer deputed by them of an order or decree for payment by an officer of the cost of the maintenance of his wife or children or any illegitimate child of his or of the cost of relief given to his wife or child, and for the deduction from his pay of such portion thereof as the Army Council or deputed officer may determine and the appropriation of the amount deducted in liquidation of the sum ordered to be paid by the order or decree) there shall be inserted the following subsection :—

Liability of
officer to
maintain wife
and children.

"(2A) The last foregoing subsection shall apply as well to orders and decrees made before the date of the coming into operation of that subsection as to orders and decrees made after that date, but in relation to an order or decree made before that date that subsection shall apply—

- (a) with the substitution for the reference to a man who is or subsequently becomes an officer of the regular forces of a reference to a man who was an officer of the regular forces at the time when the order or decree was made or has subsequently become an officer of those forces ;
- (b) with the substitution for the words ' a copy of such order or decree shall be sent ' of the words ' a copy of such order or decree may be sent ' ; and
- (c) as if the reference to the sum adjudged to be paid by the order or decree included a reference to any arrears accruing thereunder whether before or after the date of the coming into operation of the said subsection (2) ."

6.—(1) In the proviso to subsection (1) of section one hundred and fifty-eight of the Army Act (which provides that except in the case of certain offences a person who since the commission of an offence has ceased to be subject to military law shall not be tried for the offence by court-martial unless his trial commences within three months after he had ceased to be subject to military law) after the words " he had ceased to be subject to military law " there shall be inserted the words " or unless the offence was committed outside the United Kingdom and is an offence which when committed in England is punishable by the law of England, and the Attorney-General consents to the trial ".

Amendment of
s. 158.

PART I.
—cont.

(2) Subsection (1) of this section shall apply in relation to the trial of an offence after the coming into operation of this Act, whether the offence was committed before or after the coming into operation thereof.

Repeal of
subsection (1)
of s. 187c.

7. In section one hundred and eighty-seven C of the Army Act, subsection (1) (which enabled certain provisions to have effect as respects New Zealand forces, and persons attached to or accompanying those forces, notwithstanding that the Parliament of New Zealand had not adopted sections two to four of the Statute of Westminster, 1931) shall be omitted.

22 & 23 Geo. 5.
c. 4.

Application of
Part I to Air
Force Act.

8. References in the preceding sections in this Part of this Act to the Army Act shall be deemed to include references to the Air Force Act, and the provisions of the said sections shall in their application to the Air Force Act have effect subject to any of the general modifications set out in Part I of the Second Schedule to the Air Force (Constitution) Act, 1917, which apply.

7 & 8 Geo. 5.
c. 51.

PART II.

AMENDMENTS OF THE ARMY ACT.

Power of
detention in
air force
corrective
establish-
ments.

9. In section sixty-eight of the Army Act, in paragraph (e) of subsection (2) (which defines the expression "detention barrack" as including, unless the Secretary of State otherwise directs, an air force detention barrack) after the words "air force detention barrack" there shall be added the words "or air force corrective establishment".

Transfer
between
corps.

10.—(1) In section eighty-three of the Army Act, in paragraph (2) (which provides that a soldier of the regular forces may with his own consent be transferred by order of the competent military authority to any corps) the words "with his own consent" shall be omitted, and at the end of that paragraph there shall be added the words "so however that, save as otherwise provided in this section, a soldier shall not be so transferred except with his own consent unless either his attestation took place after the thirtieth day of April, nineteen hundred and forty-eight or he has after that date extended his army service or the term of his original enlistment or he has been re-engaged after that date".

2 & 3 Geo. 6.
c. 68.

(2) Subsection (3) of section three of the Armed Forces (Conditions of Service) Act, 1939 (which provides that where a transfer is authorised both by subsection (2) of that section and by section eighty-three of the Army Act, the transfer shall be deemed to have been effected in pursuance of the said subsection (2)) shall not apply in relation to a transfer authorised by virtue of subsection (1) of this section.

11.—(1) In section one hundred and seventy-nine A of the Army Act (which provides for the application of that Act to members of the air force attached to, or seconded for service with, the regular forces) in subsection (2), after the words " this Act " where they first occur, and in each place where they occur in paragraph (d) of that subsection, there shall be inserted the words " except sections one hundred and thirty-six to one hundred and forty-five A thereof ".

PART II.
—cont.
Deductions
from pay of
officers and
airmen
attached to,
or seconded
for service
with, the
regular forces.

(2) Paragraphs (h) and (i) of subsection (2) of the said section one hundred and seventy-nine A shall be omitted.

(3) At the end of the said section one hundred and seventy-nine A there shall be added the following subsections :—

" (3) Where an officer or airman of the air force is attached to, or seconded for service with, the regular forces, sections one hundred and thirty-six to one hundred and forty-four of this Act shall apply to him as if he were an officer or soldier of the regular forces, but subject to the following modifications :—

(a) in paragraph (5) of section one hundred and thirty-seven the references to the Army Council and to this Act shall be construed as references to the Air Council and to sections one hundred and forty-four A and one hundred and forty-five A of the Air Force Act ;

(b) in paragraph (8) of section one hundred and thirty-eight the references to the Army Council and to this Act shall be construed as references to the Air Council and to sections one hundred and forty-five and one hundred and forty-five A of the Air Force Act.

(4) Nothing in the foregoing provisions of this section shall affect the application to any such officer or airman of sections one hundred and forty-four A to one hundred and forty-five A of the Air Force Act."

PART III.

AMENDMENTS OF THE AIR FORCE ACT.

12. In section one hundred and thirty-two of the Air Force Act (which provides for the establishment and regulation of detention barracks) for subsection (3A) there shall be substituted the following subsection :—

Air Force
corrective
establish-
ments.

" (3A) Rules under this section may provide for the serving of sentences of imprisonment or detention, or parts

PART III.
—*cont.*

of such sentences, in establishments to be known as air force corrective establishments in lieu of detention barracks, and such rules—

(a) may make special provisions as respects such establishments for any of the matters specified in subsection (2) of this section ;

(b) may provide for persons serving sentences in such establishments being allowed out of air force custody for such periods, and subject to such conditions, as may be specified by or under the rules and for the application of this Act to persons allowed out of air force custody in pursuance of the rules who have not returned thereto on the expiration of any such period or who do not comply with any such conditions, as it applies to persons who escape from lawful custody ;

and subject to the provisions of rules made by virtue of this subsection this Act shall apply in relation to air force corrective establishments as it applies in relation to detention barracks."

Amendments
as to officers
and airmen
borne on
books of His
Majesty's
ships and to
officers,
sailors, and
soldiers
attached to
air force.

13.—(1) For proviso (d) to section one hundred and seventy-nine of the Air Force Act (which provides that an airman borne on the books of any of His Majesty's ships in commission shall, if of the regular air force, continue to be subject to the provisions of section one hundred and forty-five of the Air Force Act) there shall be substituted the following provisos—

" (d) any such officer shall, if he is an officer of the regular air force, continue to be subject to the provisions of sections one hundred and forty-four A and one hundred and forty-five A of this Act ;

(e) any such airman shall, if he is an airman of the regular air force, continue to be subject to the provisions of sections one hundred and forty-five and one hundred and forty-five A of this Act."

(2) In section one hundred and seventy-nine A of the Air Force Act (which provides for the application of that Act to members of the naval and military forces attached or lent to, or seconded for service with, the regular air force or the air force reserve) in subsection (2), after the words " this Act " in the second place in which they occur, and in each place where they occur in paragraphs (e) and (f) of that subsection, there shall be inserted the words " except sections one hundred and thirty-six to one hundred and forty-five A thereof ", and the words from " and shall so apply " to " commission in the air force " shall be omitted.

(3) Paragraphs (i) and (j) of subsection (2) of the said section one hundred and seventy-nine A shall be omitted.

PART III.
—cont.

(4) After the said subsection (2) there shall be inserted the following subsections :—

“(2A) where an officer, petty officer or seaman of the naval forces, other than one who remains subject to the Naval Discipline Act by virtue of paragraph (1A) of section one hundred and seventy-five or paragraph (1A) of section one hundred and seventy-six of this Act, is attached or lent to, or seconded for service with, the regular air force or the air force reserve, sections one hundred and thirty-six to one hundred and forty-four of this Act shall apply to him as if he were an officer or airman of the regular air force, but subject to the following modifications :—

(a) in paragraph (5) of section one hundred and thirty-seven the references to the Air Council and to this Act shall be construed as references to the Admiralty and to the provisions of the Acts relating to the naval forces corresponding with sections one hundred and forty-four A and one hundred and forty-five A of this Act ;

(b) in paragraph (8) of section one hundred and thirty-eight the references to the Air Council and to this Act shall be construed as references to the Admiralty and to the provisions of the Acts relating to the naval forces corresponding with sections one hundred and forty-five and one hundred and forty-five A of this Act.

(2B) Where an officer, non-commissioned officer or soldier of the military forces is attached, lent, or seconded as aforesaid, sections one hundred and thirty-six to one hundred and forty-four of this Act shall apply to him as if he were an officer or airman of the regular air force, but subject to the following modifications :—

(a) in paragraph (5) of section one hundred and thirty-seven the references to the Air Council and to this Act shall be construed as references to the Army Council and to sections one hundred and forty-four A and one hundred and forty-five A of the Army Act ;

(b) in paragraph (8) of section one hundred and thirty-eight the references to the Air Council and to this Act shall be construed as references to the Army Council and to sections one hundred and forty-five and one hundred and forty-five A of the Army Act.

PART III.
—cont.

(2C) The provisions of this Act shall apply as mentioned in subsections (2) to (2B) of this section in the case of any such commissioned officer as is referred to in those subsections notwithstanding that he may also hold a commission in the air force.

(2D) Nothing in the foregoing provisions of this section shall affect the application to any such officer, petty officer, non-commissioned officer, seaman or soldier as aforesaid of sections one hundred and forty-four A to one hundred and forty-five A of the Army Act or the corresponding provisions of the Acts relating to the naval forces."

PART IV.

VERBAL MODIFICATIONS OF THE ARMY ACT AND THE AIR FORCE ACT CONSEQUENTIAL ON THE INDIAN INDEPENDENCE ACT, 1947.

Repeals and
amendments
consequential
on 10 & 11
Geo. 6. c. 30.

14. The following verbal modifications of the Army Act and the Air Force Act shall be made in consequence of the Indian Independence Act, 1947 :—

- (a) the provisions specified in the first column of Parts I to III of the Schedule to this Act (which relate respectively to the Army Act, to the Air Force Act, and to both of those Acts) are hereby repealed to the extent specified in the second column thereof,
- (b) the Army Act shall be amended in manner specified in Part IV of that Schedule, and
- (c) the Army Act and the Air Force Act shall be amended in manner specified in Part V of that Schedule.

SCHEDULE.

Section 14

REPEALS AND AMENDMENTS CONSEQUENTIAL ON 10 & 11 GEO. 6. c. 30.

PART I.

REPEALS IN ARMY ACT.

<i>Section.</i>	<i>Extent of Repeal.</i>
Forty-three ...	The words from "or in the case" to "may appoint".
One hundred and seventy-two	In subsection (1) the words "or by the Commander-in-Chief of the forces in India" and the words "Commander-in-Chief or".
One hundred and seventy-five.	In paragraph (4) the word "India"; in paragraph (7) the words "or of the Governor-General of India" and the words from "subject to this qualification" to the end of the paragraph; paragraph (9); in paragraph (11) the words "India or".
One hundred and seventy-six.	In paragraph (3) the word "India"; in paragraph (8A) the words "India or"; in paragraph (10) the words from "subject to this qualification" to the end of the paragraph.
One hundred and seventy-seven.	The words "India or" wherever they occur.
One hundred and seventy-nine.	In paragraph (8) the words "the Commander-in-Chief of the forces in India or" and the words "Commander-in-Chief or".
One hundred and seventy-nine A.	In subsection (2), in paragraph (e) the words "the Commander-in-Chief of the forces in India or" and the words "Commander-in-Chief or".
One hundred and eighty-three.	In paragraph (2), sub-paragraph (a) and in sub-paragraph (b) the word "elsewhere"; in paragraph (4), in proviso (b), the words from "and in India" to "appoint".
One hundred and ninety.	In paragraph (8) the words "His Majesty's Indian forces"; paragraphs (21) to (22); in paragraph (23A) the words "of British India"; paragraph (26); in paragraph (33) the words from "and so far" to the end of the paragraph; in paragraph (35), in sub-paragraph (d) the word "India".

PART II.

REPEALS IN AIR FORCE ACT.

<i>Section.</i>	<i>Extent of Repeal.</i>
One hundred and seventy-five.	In paragraph (4) the word "India"; in paragraph (7) the words "or of the Governor-General of India"; paragraph (11A).
One hundred and seventy-six.	In paragraph (3) the word "India"; paragraph (8B).
One hundred and seventy-seven.	The words "India or" wherever those words occur, the words "or paragraph (11A)", the words "or paragraph (8B)" and the words from "and (ii) powers" to the end of the section.
One hundred and ninety.	In paragraphs (4), (5) and (5A), the words "or of a force raised in India"; paragraph (21); paragraph (21B); in paragraph (23A) the words "of British India"; paragraph (26); in paragraph (33) the words from "and so far" to the end of the paragraph; in paragraph (35), in sub-paragraph (e) the word "India".

PART III.

REPEALS IN ARMY ACT AND AIR FORCE ACT.

<i>Section.</i>	<i>Extent of Repeal.</i>
Thirteen ...	In subsection (1) the words "India or".
Fifty-nine ...	The words "India or" in both places where those words occur, and the words "as the case may require".
Sixty ...	The words "India or" in both places where those words occur.
Sixty-four ...	In subsection (4) the word "India" in the first two places where it occurs, the words "India or" in the third place where they occur, and the words "the Governor-General of India, the Governor of a Province in India, or".
Sixty-eight ...	In subsection (2), in paragraphs (f) and (g) the words "India or" wherever they occur, and in paragraph (h) the word "India".
Ninety-four ...	The words "India or" and the words from "in India any person" to "Governor-General of India; and".
One hundred and twenty-two.	In subsection (6) the words "the Governor-General of India and".

<i>Section.</i>	<i>Extent of Repeal.</i>
One hundred and thirty.	In subsection (5), the words " and in the case of a person confined in India, the Governor-General of India, or the Governor of any Province in which the person is confined " and the word " India " in the last two places where it occurs.
One hundred and thirty-two.	In subsection (1) the words " and in India for the Governor-General " and the words " Governor-General " in the second place where they occur.
One hundred and thirty-four.	The whole section.
One hundred and thirty-five.	The words " the Governor-General of India, the Governor of any Province in India or ", the words " India or " in the second place where they occur, the words " the Governor-General of India, the Governor of the Province or " and the words " as the case may be ".
One hundred and forty-three.	In subsection (1) the words " India or ".
One hundred and fifty-four.	In paragraph (5) the words from " and if in India " to " where the court sits "; in paragraph (7) the words " India or ".
One hundred and fifty-six.	In subsection (8) the words " for the Governor-General of India or " and the words " Governor-General or ".
One hundred and sixty-two.	In subsection (3) the words " or in a High Court in India ".
One hundred and sixty-three.	In subsection (1), in paragraph (d) the words " if in the United Kingdom " and the words " and if in India, by some office under the Governor-General of India "; in subsection (2) the words " and in India any Government press ".
One hundred and sixty-eight.	The word " India ".
One hundred and sixty-nine.	The words " for the Governor-General of India and " and the words " Governor-General or ".
One hundred and seventy.	In subsection (3) the words " or in a High Court in India ", the words " Indian or " and the word " respectively ".
One hundred and eighty.	The whole section.
One hundred and eighty-one.	In subsection (1) the words " India or ".

PART IV.

AMENDMENT OF ARMY ACT.

In section seventy-three, in subsection (3), for the words from the third "or" to the end there shall be substituted the words "and as respects forces outside the United Kingdom includes, subject to any directions given by the Army Council, the general or other officer commanding the forces".

PART V.

AMENDMENT OF ARMY ACT AND AIR FORCE ACT.

In section one hundred and ninety, in paragraph (23) for the words from the third "the" to the end there shall be substituted the words "Canada, the Commonwealth of Australia, New Zealand, the Union of South Africa, Eire, India, Pakistan, Ceylon and Newfoundland" and in paragraph (24) for the words "a colony, India" there shall be substituted the words "or a colony".

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